

25STCV25728 25STCV25728

County: los-angeles

Division: Civil Law and Motion

Department: 307

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Case Number: 25STCV25728 Hearing Date: July 7, 2026 Dept: 307

12 TENTATIVE RULINGS 9:15 a.m., Tuesday, July 7, 2026

SHAMAR

ONEAL v. ALL IN AUTO GROUP, ALPHA WARRANTY GROUP, JET INSURANCE CO. [25STCV25728]

1. RULING ON MOTION COMPELLING

FURTHER RESPONSE TO SPECIAL INTERROGATORIES NOS. 6, 10 11, AND 16:

6.

IDENTIFY all NMVTIS Reports including NMVTIS and CarFax reports relating to VEHICLE and IDENTIFY all PERSONS who reviewed or relied on same.

Plaintiff,

first, needs to educate the Court on what are and what relevance is there to "all NMVTIS Reports including NMVTIS and CarFax reports."

The Court

agrees with the objection that the interrogatory is compound as it covers multiple topics.

7.

IDENTIFY all DOCUMENTS and COMMUNICATIONS exchanged between YOU and All in Auto Group relating to the VEHICLE.

Apart

from the two documents that were produced, what additional documents does plaintiff contend exist for a transaction of this type? The documents identified presumably are those that were exchanged before the litigation

commenced. Only those documents would be relevant to any claim, correct?

9.

IDENTIFY all DOCS and COMMUNICATIONS that reflect any verification that All in Auto supplied PLAINTIFF the entire VSC at the time of sale.

GRANT, if
any such docs exist.

10.

IDENTIFY all DOCUMENTS and COMMUNICATIONS concerning inspection of the VEHICLE, and IDENTIFY all PERSONS involved in diagnosing "any defects" before and after the used engine installation.

The Court
agrees with the objection that the interrogatory is compound as it covers multiple topics. Further, it is unlikely defendant will admit to diagnosing "any defects."

11.

IDENTIFY all financial benefits, commissions, incentives, or rebates YOU received for the VSC sold to Plaintiff, and IDENTIFY all PERSONS aware of any such financial arrangement.

Objection
sustained as overly broad, burdensome, not relevant, and compound.

12. IDENTIFY

all DOCS and COMMUNICATIONS between YOU and any finance company relating to the VEHICLE.

Objection
sustained as overly broad, burdensome, not relevant.

16.

IDENTIFY all written and unwritten policies, procedures, guidelines, or practices that governed VEHICLE SERVICE CONTRACTS at the time of sale of the VEHICLE.

Objection

sustained as uncertain, not relevant nor likely to lead to the discovery of admissible evidence, overly broad, burdensome, and not subject matter limited.

17.

IDENTIFY all written and unwritten policies, procedures, guidelines, or practices that governed IMPLIED WARRANTIES, and IDENTIFY all DOCUMENTS relating thereto.

Objection

sustained as uncertain, not relevant nor likely to lead to the discovery of admissible evidence, overly broad, burdensome, and not subject matter limited.

2. RULING ON MOTION COMPELLING

FURTHER RESPONSE TO REQUESTS FOR DOCUMENTS:

1. Produce

all DOCUMENTS identified in your response to form and special interrogatories.

Objection

sustained. This is a ridiculous request especially with respect to special interrogatories seeking identification of documents relating to particular topics.

3. ADMIT MOTION TO COMPEL FURTHER

RESPONSE TO RFA:

The

requests asks that certain documents are genuine. Presuming that Alpha has obtained a copy of each document, what is the basis for its assertion to each RFA: "After a reasonable inquiry, Responding Party lacks sufficient information to admit this Request and on that basis denies.

Alpha

states that the Court cannot require that it admit the genuineness of the documents. That is true, but the Court can and does order Alpha to respond in detail to the form interrogatories, perhaps series 17.00, that require facts to be provided to support each denial, as to each RFA that was denied. The Court further requires Alpha to prepare further responses that remove all objections, because there is no basis for the objections.

This TR

was emailed to counsel and posted on court's website on 7/6/26 at 4:10 p.m.